

Stacks

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Key Witness Lies In Shooting Case, Prosecutor Covers-Up

"PANTHERGATE"

(Oakland, Calif.) - Black Panther Party President Huey P. Newton and his chief counsel Sheldon Otis last week lashed out at the "Panthergate" conspiracy activities of the Alameda County District Attorney's office, charging the local D.A. with covering-up crimes committed by their acknowledged "star witness" in return for her continued false testimony against the BPP leader.

Huey and Otis made their accusations at a press conference on the steps of the Alameda County Superior Court building here last Friday afternoon, the day following published reports that Raphaelle Gary, a.k.a. "Crystal Grey," lied to the Oakland police concerning her involvement in the attempted murder of a reputed drug dealer.

According to the front-page article headlined "Huey Witness Tells Lie" appearing in the Thursday, February 23, *Oakland Tribune*, Ms. Gary, a self-admitted prostitute and lesbian, first told police investigators she shot and wounded 32-year-old Eugene Jackson, in a January 22 confrontation, but then retracted her statement after she failed to pass a lie detector test about the incident.

The Alameda County District Attorney's office has refused to sign a complaint against Ms. Grey—who claims, despite gross discrepancies in her testimony, to be an eyewitness to the murder charges lodged against Huey — ruling that she was trying to protect a friend, Mosell Mitchell.

Grey, 32, admits to being a prostitute since the age of 16, saying that she spent several of those years as a member of Ms. Mitchell's



BPP President HUEY P. NEWTON listens at last week's press conference as attorney SHELDON OTIS denounces special treatment given to a key prosecution witness against Huey by the Alameda County district attorney's office.

"stable." Ms. Mitchell has been arrested on charges of assault with intent to commit murder, assault with a deadly weapon and being an ex-convict with a gun.

At last week's press conference, Huey commented (in part):

"What has happened shows that if any of
CONTINUED ON PAGE 6

Viguerie Assembles "Radical Right"

CALIFORNIA'S POLITICAL POLICE

(Sacramento, Calif.) - The specter of a post-Watergate — and even more devastating — era of political repression is emerging as recent disclosures raise the distinct possibility that the Organized Crime and Criminal Intelligence Branch (OCCIB), a division of California's Justice Department, may be the prototype of a new, low-profile, decentralized, nationally-coordinated approach to political surveillance.

And as domestic spying and covert intelligence activities flourished under the Nixon administration, so too, recent revelations concerning the emerging influence of the "New" or "Radical Right" — which over the last three years has created the apparatus for a

new political party — could give a drastic impetus to OCCIB-type political activities:

Agents of the OCCIB "under the guise of investigating 'organized crime,'" charges an American Civil Liberties Union (ACLU) of Northern California lawsuit, "conduct surveillance of, spy on, and engage in covert activities with respect to a wide variety of perfectly lawful behavior by organizations and individuals, including the activities of political and social organizations. . . ."

Furthermore, charges the ACLU, the OCCIB is the central coordinating agency for a nationwide network of law enforcement officers and the departments known as the Law Enforcement Intelligence Unit (LEIU)...for

the purpose of gathering, recording, investigating and exchanging information not available through regular police channels.

The OCCIB was established in 1970 for the purpose of "controlling and suppressing organized crime in California." In its seven years of operation, however, the OCCIB has not taken credit for the arrest or prosecution of a single major underworld figure.

"The OCCIB definition of organized crime, according to its first annual report to the state legislature, 'encompasses . . . the classical definition and also includes the activities of . . . revolutionary groups' and the 'activities of the militant.'"

CONTINUED ON PAGE 10

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